ORDINANCE NO. 461
OF THE
CITY OF RECTOR

AN ORDINANCE TO AMEND ORDINANCE #359 TO
REGULATE PRIVATE DWELLING IN BUSINESS DISTRICT

WHEREAS, it has come to the attention of the City Council for the City of Rector, Arkansas that regulations be implemented for the residential use of commercial buildings.

NOW, THEREFORE, BE IT ORDAINED by the City Council of the City of Rector, Arkansas, as follows, to-wit:

That Ordinance #359 of the City of Rector is hereby amended to add the section herein below to the existing regulation Article 5-4, section A., to read as follows:

7. Areas above the first floor of a multi-level commercially (C-1) zoned building may be utilized for single or multiple family residential usage, providing the following qualifications are met prior to the occupation of the residential portion of the building:

* A commercial business must be maintained on the first floor of the building at all times.
* No single or multiple family resident unit will be allowed on the first floor.
* A minimum of two means of egress must be maintained **in the residential area.**
* Each unit will have its own fire extinguisher and smoke detector inside. Multiple family residences with hallways will have fire extinguisher and smoke detectors in hallway as well.
* Each **residential** unit will contain its own kitchen and bathroom facility.
* Ample parking must be provided as described in C-5 of the Zoning Code or as deemed appropriate by The Planning Commission, **but not less than two spaces per unit**.
* **If the business on the first floor ceases to function the owner or leasee will have 90 days to have a business reestablished.**
* **Fire Chief or his designee shall make an annual inspection of the apartment and residence to see that the structure is in**

compliance and make a report to the Code Enforcement Officer.

* **Property owners shall have one year to be in compliance.**

An emergency is declared to exist by the City Council within the City of Rector and the passage of this ordinance is necessary for the preservation of public health, maintaining safety and public peace of the citizens of Rector. The members of the City Council hereby unanimously and expressly dispense with the rule requiring the reading of an ordinance on three different dates before its passage thereof, and this ordinance shall take effect and be enforced from and after its passage.

IN WITNESS WHEREOF, said Ordinance being duly passed by the City Council of the City of Rector, Arkansas, this 3RD day of May, 1999.

City of Rector, Arkansas

BY: Ron Kemp

Ron Kemp, Mayor

ATTESTED:

Kenneth R Burns

Kenneth Burns, Secretary/Treasurer